we cannot think in terms of anything being static and unchanging. Therefore, while fully respecting what the courts of the land have laid down and obeying their decisions, nevertheless it becomes our duty to see whether the Constitution so interpreted was rightly framed and whether it is desirable to change it here and there so as to give effect to what really in our opinion was intended or should be intended. Therefore I come up before this House, not with a view to challenge any judicial interpretation, but rather to find out and to take the assistance of this House in clearing up doubts and in removing certain approaches to this question which have prevented us sometimes from going ahead with measures of social reform and the like.

This House knows very well that there are many kinds of Constitutions in the world. There is the Constitution, which is not written down, for instance, the Constitution of the United Kingdom where Parliament is absolutely supreme and can do and say what it likes and that is the law of the land, and no court can challenge it, however they may interpret the law. Then there is the written Constitution like the Constitution of that great country – the United States of America – where the Constitution to some extent, limits the authority of the legislature in so far as certain Fundamental Rights or other provisions are given in it. Now, in the United States of America, by a long course of judicial decisions, healthy conventions have been laid down and the power of the legislature has been widened somewhat. Because of the interpretations by high judicial authority and because of those conventions, the extreme rigidity that perhaps the written word might have given it has been made more flexible in the course of generations. I have no doubt that if we live through a static period, gradually those conventions would arise here too, relaxing that extreme rigidity of the written word and that our courts would help relaxing that rigidity. But unfortunately, we have no time. It is barely a little more than a year since we started functioning under this Constitution. And to begin with, therefore, it is only the written word in all its rigid aspects that apparently counts and not the many inner meanings that we sought to give to it. So we are deprived of that slow process of judicial interpretation and